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Case Number: 25LBCV01401 Hearing Date: September 1, 2026 Dept: S28

BACKGROUND

On

May 1, 2025, Plaintiffs Bill M. Spaulding and Evangeline M. Spaulding ("Plaintiffs") commenced this action against American Honda Motor Co., Inc. ("Defendant") alleging violations of Statutory Obligations under the Song-Beverly Act.

On April

13, 2026, Plaintiffs filed a First Amended Complaint ("FAC") after the Court granted Defendant's Motion for Judgment on the Pleadings.

On May 8, 2026, Defendant filed the instant Motion for Summary Judgment.

As of August 28, 2026, no opposition has been filed. Timely opposition to an MSJ must have been filed twenty (20) court days before the hearing. (Code Civ. Proc. § 473c subd. (c) ["An opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise. The opposition, where appropriate, shall consist of affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken."].)

DISCUSSION

Applicable

Law

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

"In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom [citation] and must view such evidence [citations] and such inferences [citations] in the light most favorable to the opposing party." (Aguilar, supra, at pp. 844-845 [quotation marks omitted].)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) "A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (Code Civ. Proc. § 437c, subd. (p)(2).)

To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) "If the plaintiff cannot do so, summary judgment should be granted." (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463,

467.)

Preliminary

Matters

Request for Judicial Notice

Defendant

asks the Court to take judicial notice of the Complaint and FAC, which are Court records. It is not necessary for the Court to take judicial notice of the Complaint and FAC as they are already part of this Court's record. Nevertheless, this request is GRANTED.

Analysis

B.

Plaintiffs' Song-Beverly Act Claims

(First through Fourth causes of action)

i.

First Cause of Action – Express Warranty

Defendant

argues that Plaintiffs cannot establish a triable issue of material fact for their First Cause of Action based on express warranty because Plaintiffs have not identified any nonconformity covered by warranty that impairs the use, value, or safety of the 2020 Honda Odyssey, nor have they identified any such nonconformity that was not repaired in a reasonable number of attempts. (Notice of Mot.)

Plaintiffs'

first four causes of action arise under the Song-Beverly Act. "The Song-Beverly Act is a remedial statute designed to protect consumers who have purchased products covered by an express warranty." (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 798.) The Song-Beverly Act requires that "[e]very manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall: [¶] (1)(A) Maintain in this state sufficient service and repair facilities reasonably close to all areas where its consumer goods are sold to carry out the terms of those warranties or designate and authorize in this state as service and repair facilities independent repair or service facilities reasonably close to all areas where

its consumer goods are sold to carry out the terms of the warranties.”

(Civ. Code, § 1793.2(a).)

For motor vehicles specifically, “[i]f the manufacturer or its representative in this state is unable to service or repair a new motor vehicle, as that term is defined in paragraph (2) of subdivision (e) of Section 1793.22, to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either promptly replace the new motor vehicle in accordance with subparagraph (A) or promptly make restitution to the buyer in accordance with subparagraph (B).” (Civ. Code, § 1793.2(d)(2).)

“For new products, liability extends to the manufacturer; for used products, liability extends to the distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good.” (Rodriguez v. Ford Motor Co.(2017), 17 Cal.5th 182, 202.) For purposes of Civil Code section 1793.2(d), the term “[n]ew motor vehicle’ means a new motor vehicle that is bought or used primarily for personal, family, or household purposes. ‘New motor vehicle’ also means a new motor vehicle with a gross vehicle weight under 10,000 pounds that is bought or used primarily for business purposes by a person, including a partnership, limited liability company, corporation, association, or any other legal entity, to which not more than five motor vehicles are registered in this state.” (Civ. Code, § 1793.22(e)(2).) “[O]ther motor vehicle sold with a manufacturer’s new car warranty” means “a vehicle for which a manufacturer’s new car warranty is issued with the sale.” (Rodriguez, supra, at p. 206.) Under Song-Beverly, a manufacturer is “generally off the hook” for used vehicles. (Kiluk v. Mercedes-Benz USA, LLC (2019) 43 Cal.App.5th 334, 339.)

Defendant

cites to Silvio v. Ford Motor Co. (2003) 109 Cal.App.4th 1205, 1208 (Silvio), wherein the Court of Appeal expressly held that Song-Beverly Act liability is triggered when more than one repair attempt is made for the same alleged non-conformity. (Mot., p. 8.)

Defendant

puts forth the following undisputed material facts: When AHM requested that Plaintiffs identify the nonconformity that impaired the use, value or safety of their Odyssey, they could not. (SSUMF 38- 39.) Similarly, when AHM requested that Plaintiffs identify which nonconformities had not been repaired, they could not. (Ibid.)

To the extent Plaintiffs rely on multiple service visits involving the sliding door, the undisputed evidence shows that Plaintiffs initially brought the vehicle in solely for a recall and were not experiencing any sliding-door issues at that time. (SSUMF 4.) The 3-year/36,000 mile new vehicle limited warranty expired on June 7, 2023. (SSUMF 11.) The first reported sliding-door concern did not arise until July 8, 2024, more than a year after the expiration of the 3-year/36,000-mile new vehicle limited warranty when Plaintiffs reported for the first time that the sliding doors would nearly close and then reopen. (SSUMF 25.) The visits also involved work on different door components, including separate sensors, cables, and mechanisms, rather than repeated repair attempts for the same alleged defect. (SSUMF 25–33.)

Here,

based on the repair records before the Court, Defendant carries its burden to establish that Plaintiffs did not present the Subject Vehicle for more than one repair attempt for the same alleged non-conformity during the express warranty period. When AHM requested that Plaintiffs identify the nonconformity that impaired the use, value or safety of their Odyssey, they could not. (SSUMF 38- 39.) Similarly, when AHM requested that Plaintiffs identify which nonconformities had not been repaired, they could not. (Ibid.) This is insufficient under Silvio. Thus, Defendant has met its burden of establishing that the first cause of action has no merit because Plaintiffs cannot prove the existence of a defect or nonconformity in the subject vehicle during the warranty period, or the requisite number of repair attempts.

Plaintiffs fail to oppose, and thus fail to create a triable issue of material fact on the first cause of action.

ii. Second

Cause of Action -- Section 1793.2(b) Claim

Section

1793.2(b) of the Song-Beverly Act requires defendants to repair a vehicle to conform to the applicable warranty within thirty days.

Defendant

argues that Plaintiffs' 1793.2(b) claim fails as Plaintiffs have not identified any repair that took more than 30 days to complete.
(Mot., p. 9.)

Defendant

puts forth the following undisputed material facts: Plaintiffs cannot identify any evidence that any repair of their Odyssey took more than 30 days. (SSUMF 3-33.) To the contrary, the undisputed evidence shows that every presentation of the Odyssey for service was completed on the same day, and Plaintiffs never experienced any period during which the vehicle was unavailable due to warranty repairs. (Ibid.) AHM served comprehensive written discovery asking Plaintiffs to identify the total number of days they could not use their vehicle because it was being repaired. (SSUMF 41-42.) Plaintiffs failed to identify evidence the vehicle was out of service for repairs for over one day. (SSUMF 41-42.)

Here,

Defendant carries its burden to establish that Plaintiffs have not produced and cannot produce affirmative evidence that any single repair attempt exceeded 30 days as required under § 1793.2(b).

Plaintiffs fail to oppose,
and thus fail to create a triable issue of material fact on the second cause of action.

iii. Third

Cause of Action -- 1793.2(a)(3) Claim

Section

1793.2(a)(3) of the Song-Beverly Act requires a service facility to be supplied with adequate literature and replacement parts.

Defendant

argues that Plaintiffs have produced no evidence of any repair delay, let alone a delay attributable to AHM's purported failure to supply parts or literature, asserting only the conclusory statement that AHM "failed to make available to its authorized service and repair facilities sufficient service literature and replacement parts."
(SSUMF ¶ 44.)

Defendant puts forth the following

undisputed material facts: The repair orders show all repairs were timely made in one day, belying any claim of delay due to insufficient parts or literature. (SSUMF 3-33.) AHM also served comprehensive written discovery asking Plaintiffs to identify any warranty repairs made to any AHM authorized dealership that are not recorded in the repair orders. (SSUMF 45-46.) When AHM requested Plaintiffs identify any warranty repairs made to any AHM authorized dealership that are not recorded in the repair orders, they could not. (SSUMF 46.) Plaintiffs failed to serve substantive responses supporting this claim. (SSUMF 46.)

Here,

Defendant carries its burden to establish that Plaintiffs have not produced and cannot produce affirmative evidence of any repair delay, let alone a delay attributable to AHM's purported failure to supply parts or literature.

Plaintiffs fail to oppose,
and thus fail to create a triable issue of material fact on the third
cause of action.

iv. Fourth

Cause of Action -- Implied Warranty

Section

1791.1(c) of the Song-Beverly Consumer Warranty reads: "The duration of the implied warranty of merchantability...shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable; but in no event shall such implied warranty have a duration of less than 60 days nor more than one year following the sale of new consumer goods to a retail buyer. Where no duration for an express warranty is stated with respect to consumer goods, or parts thereof, the duration of the implied warranty shall be the maximum period prescribed above."
(Cal. Civ. Code §1791.1(c),

Defendant

argues that Plaintiffs cannot identify any evidence suggesting their vehicle was unsafe or undrivable. (Mot., p. 11.) Defendant further argues that summary adjudication is also appropriate on Plaintiffs' implied warranty claim because they have offered no evidence that any defect existed at the time of delivery. (Ibid.) Defendant finally argues that summary adjudication on Plaintiffs' implied warranty claim is warranted because Plaintiffs cannot establish they are entitled to damages

under Cal. Civ. Code § 1794 since their revocation was untimely. (Ibid.)

Defendant puts forth the following

undisputed material facts: Plaintiffs did not present the vehicle for repair of any issue—aside from asymptomatic recalls—during the first year of ownership. (SSUMF No. 3-6). The first presentation for a potential nonconformity occurred on March 15, 2022, well after the implied warranty expired. (SSUMF 7-9) Plaintiffs also drove the vehicle over 30,000 miles during their ownership of the vehicle. (SSUMF 48.) The repair orders show the first presentation for any potential issue occurred over 18 months after Plaintiffs bought the car, notwithstanding multiple service visits and two visits for asymptomatic recalls where Plaintiffs made no complaints about their vehicle. (SSUMF 3-14, 34-35.)

Here,

Defendant carries its burden to establish that Plaintiffs failed to put forth evidence that their vehicle was not fit for the ordinary purpose for which it was used, or that it was unsafe to operate. Defendant further shows that Plaintiffs have offered no evidence that any defect existed at the time of delivery, and that Plaintiffs cannot establish they are entitled to damages under Cal. Civ. Code § 1794 because Plaintiffs' "revocation" was not timely: Plaintiffs did not attempt to revoke acceptance until May 1, 2025, when they filed this action, nearly five years after delivery of the Odyssey and well after the expiration of the one-year implied warranty period. This was months after they traded in the vehicle. (SSUMF 36.)

Plaintiffs fail to oppose,

and thus fail to create a triable issue of material fact on the fourth cause of action.

Overall,

Defendant's motion for summary judgment is GRANTED as to the first, second, third, and fourth causes of action.

C. Fraudulent

Concealment (Fifth cause of action)

Defendant

next argues that Plaintiffs' fraudulent concealment claim fails as a matter of law because (1) Plaintiffs have no evidence of concealment; (2) AHM had no duty to disclose additional information to Plaintiff; and (3) this cause of action is barred by the economic loss doctrine. (Mot., pp. 13-18.)

Fraud

based on concealment requires that “(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Bigler-Engler v. Breg, Inc.

(2017) 7 Cal.App.5th 276, 310-311 (Bigler-Engler).)

An

essential element of intentional concealment includes the duty to disclose, which must be based upon a transaction, or a special relationship, between plaintiff and defendant. (Bigler-Engler, supra, 7 Cal.App.5th at 311.) “There are ‘four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.’” (Ibid.) “[O]ther than the first instance, in which there must be a fiduciary relationship between the parties, ‘the other three circumstances in which nondisclosure may be actionable presuppose[] the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise. . . . “[W]here material facts are known to one party and not to the other, failure to disclose them is not actionable fraud unless there is some relationship between the parties which gives rise to a duty to disclose such known facts.”

[Citation.]’ [Citation.]” (Hoffman v. 162 North Wolfe LLC (2014) 228 Cal.App.4th 1178, 1187 (Hoffman).)

“Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Bigler-Engler, supra, 7 Cal.App.5th at p. 312.)

First,

Defendant argues that Plaintiffs have put no admissible evidence into the record to support their concealment theory. (Mot., p. 13.) Defendant puts forth

the following undisputed facts in support: Plaintiffs contend AHM did not disclose a defect in the “10-Speed transmission,” which caused various problems ranging from hesitation while accelerating to complete failure of the transmission. (SSUMF 50.) In response to AHM’s request for documents supporting this claim, Plaintiffs have not identified any documents showing AHM had knowledge of any alleged “transmission defect” before they brought their Odyssey, much less that it concealed any defect at that time. (SSUMF 51-52.) And when AHM requested Plaintiffs identify “persons” with knowledge to support the concealment claim, they did not identify any individuals. (Id.) None of the vehicle presentations have been for transmission-related defects, as the repair orders confirm. (SSUMF 4-5, 6, 10, 13.) Further, Mr. Spaulding did not testify to any transmission defect or malfunction. (SSUMF 54.) He explained that the incident in which the vehicle would not start at the school was resolved by replacing the battery, and he did not attribute that incident to the transmission or any other vehicle system. (SSUMF 54.)

Here,

Defendant carries its burden to establish that Plaintiffs failed to put forth evidence that Defendant concealed any material fact. Plaintiffs put forth no basis for AHM’s pre-sale knowledge of any defect, and the service history does not involve any transmission defects which Plaintiffs claim Defendant concealed in the first place.

Plaintiffs fail to oppose,
and thus fail to create a triable issue of material fact on the fifth cause of action on this basis.

Next,

Defendant argues that Plaintiffs cannot establish AHM owed a duty to disclose to them, much less direct dealings between them and AHM. (Mot., p. 14.) Defendant contends that Plaintiffs did not engage in a direct transaction with AHM because Plaintiffs bought the Odyssey from an independently owned and operated dealership—Elk Grove Honda—not AHM. (SSUMF 1.) In fact, Mr. Spaulding testified that, before purchasing the Odyssey, he had no contact or communications with American Honda Motor Company and dealt only with the dealership. (SSUMF 53.)

Here,

Defendant carries its burden to establish that there was no relationship between the parties that gave rise to a duty to disclose facts as Defendant is

the manufacturer while Plaintiffs only entered into a contract with a third-party retailer. (See Hoffman, supra, 228 Cal.App.4th at 1187.)

Thus,

in the absence of a fiduciary relationship, Plaintiffs' claim for concealment requires one of three conditions: (1) exclusive knowledge of a material fact by Defendant; (2) active concealment of a material fact; or (3) partial representations coupled with suppression of material facts. (Bigler-Engler, supra, 7 Cal.App.5th at 311; LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336.)

As

discussed above, Defendant carries its burden to establish that Plaintiffs presented with no transmission defect and that Plaintiffs fail to provide evidence that Defendant concealed any defect.

Plaintiffs fail to oppose,

and thus fail to create a triable issue of material fact on the fifth cause of action on this basis.

Finally,

Defendant contends that the fraudulent concealment claim fails because it is barred by the economic loss rule. (Mot., p. 15.) The economic loss doctrine precludes recovery in tort where a plaintiff's damages consist solely of economic losses. (Seely v. White Motor Co. (1965) 63 Cal.2d 9, 17-18, superseded by statute on other grounds.)

Here,

Plaintiffs' fraud claim is not barred by the economic loss rule.

"[T]he economic loss rule does not apply to limit recovery for intentional tort claims like fraud," but applies instead to negligently inflicted economic losses devoid of physical or property damage. (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 38.) "Plaintiffs' claim for fraudulent inducement by concealment is not subject to demurrer on the ground it is barred by the economic loss rule." (Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 840 (review dismissed December 18, 2024).) This cause of action is an intentional tort fraud claim and therefore falls outside the scope of the economic loss rule. (Jones v. Awad (2019) 39 Cal.App.5th 1200, 1211.)

Thus,

Defendant fails to carry its burden on this issue.

Overall,

Defendant's motion for summary judgment is GRANTED as to the fifth cause of action.

CONCLUSION

Defendant's Motion for Summary Judgment is
GRANTED.

Defendant is ordered to submit a proposed
judgment within 10 days.

A Non-Appearence Case Review re: Submission
of Proposed Judgment will be scheduled.